

CASE SUMMARY

State v. Vinod Kumar

Ct. Case No. 325/2024 | PS Mangol Puri | Court of the Additional Sessions Judge (Electricity), North-West District, Rohini Courts, Delhi

COURT

Court of the Additional Sessions Judge (Electricity), North-West District, Rohini Courts, Delhi

JUDGE

Sh. Kuljeevan Sidhar, Addl. Sessions Judge (Electricity)

DATE OF JUDGMENT

2 July 2026 (date of inspection / offence: date of inspection)

PARTIES

State (Tata Power Delhi Distribution Ltd.) v. Vinod Kumar (alleged operator of an e-rickshaw charging point)

STATUTES INVOKED

Section 135 (and third proviso to s. 135(1)), Electricity Act, 2003; Sections 101, 106 & 65B, Indian Evidence Act, 1872; Sections 251 & 313, Cr.P.C.

RESULT

Acquitted — complaint dismissed. The alleged theft was found to have been carried on outside the accused's registered premises, with no proof that he operated the charging point. The accused stands acquitted of the charge under Section 135 of the Electricity Act, 2003.

CHARGE BEFORE THE COURT

Whether the accused Vinod Kumar dishonestly abstracted electricity to run an e-rickshaw charging point, so as to attract Section 135(1) of the Electricity Act, 2003; and whether the prosecution proved that the abstraction was his, given that the alleged activity was found outside his registered premises.

FACTS

An enforcement team of TPDDL alleged direct theft of electricity by a meter bypass and an LV-cable tap said to feed a large e-rickshaw charging load (a connected load of some 37.5 KW, assessed at about Rs. 18.97 lakh). The accused was not present at the inspection, and the tapping/charging activity was found at an open area outside his registered premises. The team prepared the usual inspection documents; no operator or e-rickshaw owner was examined.

On a complaint under Section 135, the accused pleaded not guilty. The prosecution examined its officials. Under Section 313 Cr.P.C. the accused denied the allegations and led no defence evidence, contending that he neither ran the charging point nor was shown to have any control over it.

REASONING OF THE COURT

HEADNOTE

A very large assessment for an e-rickshaw charging load does not convict where the abstraction was found outside the accused's registered premises, the accused was absent at the inspection, and no evidence — no operator, no e-rickshaw owner, no proof of control or collection of charges — connected him to the activity. Presence in the vicinity is not proof of theft.

The presumption arises only after the prosecution proves the foundational facts. The Court proceeded from first principles: the third proviso to Section 135(1) is a reverse-onus clause that operates only once the prosecution has proved, beyond reasonable doubt, both an unauthorised abstraction of electricity and the identity of the accused as its author or the consumer of the premises. Until that foundation is laid the ordinary burden rests on the prosecution, and where two views are reasonably possible the one favouring the accused must be preferred.

The abstraction was located outside the registered premises. The alleged tap and charging activity were found not at the accused's registered premises but at an open area outside it; the prosecution offered nothing to bring that external activity home to the accused as its author.

The accused's absence and the missing witnesses left identity unproved. The accused was not present at the inspection; no e-rickshaw owner or operator was examined, and there was no documentary proof that the accused controlled the charging point or collected charges — on *Krishna Gupta v. State*, mere proximity does not establish the direct nexus the offence requires.

The scale of the assessment could not supply the missing proof. That the assessed load and demand were large (some 37.5 KW / Rs. 18.97 lakh) went to quantum, not authorship; the accused could as easily have rebutted the presumption with paid bills (*Mukesh Rastogi*) had the foundational nexus been proved — but it was not.

The cumulative doubt entitled the accused to acquittal. With the abstraction located outside the registered premises, the accused absent at the inspection and no witness connecting him to the charging point, the foundational facts were not established to the standard the law requires. The statutory presumption never arose, the benefit of the doubt went to the accused, and the charge under Section 135 of the Electricity Act, 2003 was not brought home.

INTERPRETATION OF THE ELECTRICITY STATUTES

ELECTRICITY ACT, 2003

Section 135(1) — Theft of Electricity: the Foundational Facts

The Court read Section 135(1) as requiring the prosecution first to prove, beyond reasonable doubt, the foundational facts — an unauthorised or artificial abstraction of electricity *and* the identity of the accused as its author or as the consumer/user of the inspected premises. Only upon proof of those facts does the offence, or the abetment of it, arise; a bare allegation, or mere presence at or near the spot, is not enough. As the Act does not define “dishonestly,” Section 24 IPC is imported, but dishonest intention presupposes an abstraction first fixed on the accused.

Third Proviso to Section 135(1) — When the Presumption Does Not Arise

The reverse-onus presumption of dishonest use operates only after the prosecution has established the artificial means of abstraction and connected it to the accused. Where that foundation fails — the inspection is self-contradictory, the user's identity is not fixed, material witnesses are withheld, the electronic record is not duly certified under Section 65B, or the officer's authority to complain is not proved — the presumption never arises. The ordinary rule then governs: the prosecution must prove guilt beyond reasonable doubt, and where two views are reasonably possible the one favouring the accused is adopted.

HELD

The prosecution having failed to prove the foundational facts — the abstraction located outside the registered premises, the accused absent at the inspection and no witness connecting him to the charging point — the charge under Section 135 of the Electricity Act, 2003 was not established beyond reasonable doubt. **The accused is accordingly acquitted, and the complaint is dismissed.**

SIGNIFICANCE

The largest assessment in the entire set (over Rs. 18.9 lakh for a 37.5 KW e-rickshaw load) — yet an acquittal, because authorship was never proved. Four propositions stand out:

- **Theft found outside the registered premises must still be tied to the accused.** An abstraction in an open/public area is not automatically the registered consumer's; the prosecution must prove his control over the tapping or charging activity.
- **Absence at inspection plus missing operators is fatal to identity.** Where the accused is absent and no operator or beneficiary is examined, the “who ran it” question is left open (*Krishna Gupta*).
- **A large assessment is not a substitute for proof of authorship.** The size of the load or bill goes to quantum; it cannot fill a gap in proof of who abstracted the electricity.
- **The presumption never arose.** Without the foundational nexus, the third-proviso presumption did not engage, and the ordinary burden defeated the prosecution.

CITATIONS

Neither side argued from case law; every citation below is drawn from the Court's own reasoning.

CASE	PRINCIPLE CITED FOR	TREATMENT
<i>Krishna Gupta v. State</i> Delhi HC	The prosecution must prove the accused's direct nexus with the abstraction; mere presence at or proximity to the spot, without evidence of control or consumption, does not establish theft.	Relied on
<i>Mukesh Rastogi v. North Delhi Power Ltd.</i> 2007 (99) DRJ 108	The easiest rebuttal of the theft presumption is to produce paid electricity bills; under Section 106 of the Evidence Act the onus of proving lawful, metered use lies on the consumer.	Relied on

This summary is a condensed digest prepared for quick reference. It is not a substitute for the full text of the judgment and should not be relied upon for legal advice without verification against the original.